

And by the 66th section, trustees and their solicitors are exonerated from all liability for omitting to exclude the application of the above-mentioned stipulations to any contract they may enter into, but nothing in the act is to make the adoption in connection with any contract of any further or other stipulations improper.]

47. **Clearing the title.** — Trustees for sale may do all reasonable acts which they are professionally advised are proper for the purpose of clearing the title and completing the sale (*b*).

48. **Succession duty.** — Trustees for sale who are to stand possessed of the proceeds upon trust for one person for life with remainder to another, can, whether the sale be or not exercisable with the consent of the tenant for life or of the successor, *i.e.*, the remainderman, give a good title to the purchaser free from *succession duty*; for the duty [*441] * attaches on the interest of the successor, *i.e.*, the money in the hands of the trustees who are responsible, and the sale is by a title which is paramount to the successor's interest; and if the sale is to be by *consent*, the power of selling free from the duty is by the act not to be thereby prejudiced (*a*). So trustees for sale who are to stand possessed of the proceeds to pay legacies can pass the estate free from duty, for the succession duty does not attach where legacy duty is payable (*b*), and the legacy duty is not a charge on the estate, but is payable in respect of the proceeds in the hands of the trustees (*c*).

49. **Hardship.** — The Court will not enforce a contract against trustees where it presses with extreme *hardship*. Thus, where trustees, not being apprised of the real amount of the incumbrances upon an estate, entered into a personal engagement with the purchaser to clear off all incumbrances, the Court would not compel the trustees to fulfil their con-

(*b*) *Forshaw v. Higginson*, 8 De G. M. & G. 827.

(*a*) 16 & 17 Vict. c. 51, ss. 42, 44; see *Harding v. Harding*, 2 Giff. 597; *Hobson v. Neale*, 8 Exch. 368; *Earl Howe v. Earl of Lichfield*, 2 L. R. Ch.

App. 155; *Dugdale v. Meadows*, 9 L. R. Eq. 212, affirmed on app. 6 L. R. Ch. App. 501.

(*b*) As to leaseholds, see 16 and 17 Vict. c. 51, ss. 1 and 19.

(*c*) 16 & 17 Vict. c. 51, s. 18.